

Did the trial judge err in finding that the right to fish could found an action in private nuisance?

[43] The issue before the trial judge was whether Aboriginal rights could, at law, found the appellants' action in nuisance.

[44] On appeal, the issue is whether the trial judge applied the correct legal test in his analysis of nuisance and the permissible scope of the tort, which resulted in his finding that Aboriginal fishing rights could give rise to a claim in the tort of nuisance. This is to be reviewed on a correctness standard (*British Columbia (Minister of Public Safety) v. Latham*, 2023 BCCA 104 at paras. 49–50, leave to appeal to SCC ref'd, 40693, 40703 (21 December 2023) [Latham]).

[45] The essence of any nuisance claim involves the interference with property rights (RFJ at para. 345, citing *Royal Anne Hotel Co. v. Ashcroft (Village)* (1979), 95 D.L.R. (3d) 756 at para. 9, 1979 CanLII 2776 (B.C.C.A.) [Royal Anne]).

[46] RTA and British Columbia objected to the appellants' nuisance claims on a number of grounds. RTA argued that the appellants' constitutionally protected rights are not actionable against a private entity such as RTA but only actionable against the Crown (RFJ at para. 350). RTA also challenged the position that Aboriginal rights confer a proprietary interest in land sufficient to ground a claim in nuisance. British Columbia's position was that Aboriginal fishing rights do not have the required degree of exclusive possession, are not akin to an actionable *profit à prendre*, and do not bestow any sort of title to a fishery (at para. 351). Canada took no position on the issue as there was no nuisance claim against Canada.

[47] The trial judge correctly set out the legal framework for nuisance (RFJ at paras. 345, 347).

[48] He first considered whether Aboriginal rights are actionable against non-governmental entities. He observed that *Haida Nation v. British Columbia (Minister of*

Forests), 2004 SCC 73 [Haida] expressly affirmed the possibility of tort liability on the part of third parties based on the legal rights of Indigenous peoples.

[49] The trial judge then considered whether sui generis Aboriginal interests could found an action in nuisance and noted that this Court in *Saik'uz First Nation and Stellat'en First Nation v. Rio Tinto Alcan Inc.*, 2015 BCCA 154, leave to appeal to SCC ref'd, 36480 (15 October 2015) [Saik'uz 2015] endorsed three separate bases on which the nuisance claim in this case might be founded; namely, (1) the appellants' interest in their reserves, (2) their Aboriginal right to fish, and (3) their Aboriginal title (if established) (RFJ at para. 362).

[50] RTA conceded that the appellants' reserve interests can found a claim in nuisance. The trial judge had "no hesitation in concluding that, as a matter of law, the [appellants'] interests in and occupancy" of the two reserves in question was "sufficient to found an action in private nuisance arising from any substantial and unreasonable interference with their use or enjoyment of the reserve lands" (RFJ at para. 366). He reached the same conclusion, in obiter, with respect to Aboriginal title (at para. 367).

[51] The judge then turned to the "more controversial" issue of whether the Aboriginal right to fish bestowed standing to sue in nuisance (RFJ at para. 368).

[52] He declined to engage in the parts of the issue that constituted more of an academic debate, recognizing that *R. v. Sparrow*, [1990] 3 S.C.R. 1075, 1990 CanLII 104, shows that Aboriginal fishing rights are not easily analogized to other rights (RFJ at para. 375). He agreed with the submissions of the appellants, who argued that this was the appropriate case to extend the common law to recognize that a claim in nuisance must be sustainable when there is an unreasonable interference with the Aboriginal right itself or the land to which that right is intimately related (at para. 376).

[53] He then concluded that the appellants' Aboriginal right to fish was legally sufficient to found an action in private nuisance, regardless of whether that right was exercised in the waters within or adjacent to the reserve lands and whether or not they held title to those lands and waterbeds (RFJ at para. 377). He rejected the submissions from RTA and British Columbia which objected to developing the law in such a manner (at paras. 379–382).

[54] Ultimately, he concluded that the appellants' occupation of their reserve lands was sufficient to ground their nuisance claim, and, independently, that sui generis Aboriginal rights to fish could found an action in nuisance in the appropriate circumstances (RFJ at para. 383).

Positions of the parties

[55] RTA submits that the trial judge erred in law by holding that Aboriginal rights can ground a private cause of action in nuisance. It argues that the judge "fundamentally changed the common law of tort and property" in holding that Aboriginal rights are actionable directly against third parties, rather than allowing for the reconciliation of those rights through negotiation, and if necessary, litigation against the Crown.

[56] RTA says that the trial judge effectively created a novel "super tort" grounded in Aboriginal rights, one that is both newly actionable and able to pierce directly otherwise valid common law defences. Furthermore, the finding that an Aboriginal right to fish could be "broadly" actionable in private nuisance is contrary to the principle that, at its core, nuisance is a tort committed against the land itself rather than against any person. Relying on *Watkins v. Olafson*, [1989] 2 S.C.R. 750, 1989 CanLII 36 and *R. v. Salituro*, [1991] 3 S.C.R. 654, 1991 CanLII 17, RTA submits that the judge's finding is contrary to the principle that extensions to the common law must follow relevant principles and be exercised with judicial restraint.

[57] The appellants disagree with RTA's argument that only a proprietary right can give rise to liability in nuisance, and that because the appellants neither own the fishery nor the fish, their Aboriginal right cannot ground a nuisance claim. They say that what is relevant is whether their interests are of the kind that the tort is designed to protect and that interests, short of ownership, can sustain a claim.

[58] They submit that the tort provides broad protection against interference or disturbance in the exercise or enjoyment of a right that is inherently and intimately connected with land, an example being profits à prendre. They argue that their right to fish is a site-specific interest that encompasses "access to the fishery as well as preservation

of the fish” (Pasco v. Canadian National Railway Co. [1986] 1 C.N.L.R. 35, 1985 CanLII 320 at para. 31 (B.C.S.C.)).

Discussion

[59] As a preliminary issue, RTA appears to argue that from a pleadings perspective, the appellants’ claims in private nuisance do not disclose an action known at law and were thus bound to and should have failed.

[60] The difficulty with this argument is that it was specifically rejected in Saik’uz 2015. First of all, with respect to Aboriginal rights, Justice Tysoe, writing for the Court, concluded that the chambers judge had erred in holding that no reasonable causes of action existed until Aboriginal rights and title were proven or accepted. He stated that it was not plain and obvious that the notice of civil claim disclosed no reasonable cause of action with respect to the claims for private nuisance, public nuisance, and breach of riparian rights, to the extent they are based on Aboriginal title and rights (Saik’uz 2015 at para. 79).

[61] Secondly, with respect to the claims based on the appellants’ interest in the reserve lands, Tysoe J.A. said it was not “plain and obvious” that they do not qualify as claimants in private nuisance under the narrower view that a plaintiff must have the right of exclusive possession to maintain an action in private nuisance (Saik’uz 2015 at para. 87). In reaching that conclusion, Tysoe J.A. pointed to s. 2 of the Indian Act, R.S.C. 1985, c. I-5, which defines “reserve” as “a tract of land, the legal title to which is vested in Her Majesty, that has been set apart by Her Majesty for the use and benefit of a band”. He said that this would “give the band the right to exclusive possession of the reserve lands, which is sufficient to found a claim in private nuisance” (at para. 88).

[62] As we later explain, the effect of Saik’uz 2015 is limited on this appeal in that it only decided it was not plain and obvious that the appellants’ claims would fail. However, it is of assistance as we conduct our own review of the judge’s analysis and in light of his findings that were made on a full evidentiary record at trial.

[63] At a minimum, since this Court found the claims were not bound to fail, the appellants’ claims should have been and were in fact considered by the trial judge in the

context of the findings he made both with respect to the existence of the constitutional right to fish and their use of reserve lands.

[64] The question then becomes whether the appellants' claims in nuisance can be decided within the existing legal framework, or, as RTA asserts, were wrongly decided by the judge who impermissibly expanded the scope of the tort.

[65] A "dearth" of similar cases presents "no great obstacle" to a claim, since "nuisance is one of those areas of the law where the courts have long been engaged in the application of certain basic legal concepts to a never-ending variety of circumstances..." (Fearn v. Board of Trustees of the Tate Gallery, [2023] UKSC 4 at para. 14, citing Bank of New Zealand v. Greenwood, [1984] 1 NZLR 525 at 530).

[66] Accordingly, we agree with the trial judge that "whether the conventional nomenclature of nuisance law (such as 'proprietary rights') is technically descriptive of Aboriginal rights" cannot be determinative of whether those rights suffice to ground a claim (RFJ at paras. 376–377).

[67] RTA submits that only a proprietary right can give rise to liability in nuisance, and because the appellants neither own the fishery nor the fish, their Aboriginal right cannot ground a nuisance claim.

[68] We consider this approach overly restrictive and are of the view that a broader perspective is required. The judge explained that the "infrastructure of Aboriginal law" developed by the Supreme Court of Canada contained a number of features, including that Aboriginal rights are unique in nature (*sui generis*), and "do not necessarily coincide with traditional common law rules respecting property" (RFJ at para. 237).

[69] Given that nuisance is a field of liability focused on the harm suffered rather than on the prohibited conduct, the analysis must consider whether the appellants' constitutionally protected interests are those which the tort of nuisance is designed to protect.

[70] The appellants correctly set out these points in their Reply Factum at paras. 73–74:

- Interests in land short of ownership can sustain a claim in nuisance.
- The tort of nuisance provides broad protection against “interference with, disturbance of or annoyance to a person in the exercise or enjoyment of ... ownership or occupation of land or of some easement, quasi-easement or other right used or enjoyed in connection with land” such as (but not limited to) profits à prendre.
- Fishing rights in the nature of a profit à prendre have grounded nuisance claims, including where the Court expressly recognized that only “when the fish are caught” is there “a right to property in the fish”.

[71] Furthermore, in *Northern Cross (Yukon) Ltd. v. Yukon (Energy, Mines and Resources)*, 2021 YKCA 6, albeit in the context of considering whether an action was bound to fail, the Yukon Court of Appeal recognized that a nuisance may arise when interference with a profit à prendre prevents the plaintiff’s interest “from being used and enjoyed in a meaningful way” (at para. 101, citing 2021 YKSC 3 at paras. 206–207, leave to appeal to SCC ref’d, 40053 (4 August 2022)).

[72] It is of assistance to summarize certain of the trial judge’s findings of fact to which the legal framework must be applied:

- The Saik’uz and Stellat’en are taught methods as children to catch salmon and Nechako White Sturgeon that have been employed “at various specific family ‘owned’ locations on the Nechako River, Fraser Lake and the Stellako River” (RFJ at para. 249).
- Specific spiritual and ritual practices related to fishing play a role in the intergenerational transmission of culture (at para. 249).

- Fishing sites are exclusive and require permission for fishing to occur at other sites traditionally occupied by other families (at para. 249).
- The appellants have proven their Aboriginal right to fish in their respective areas of the Nechako watershed (at para. 253).

[73] Specifically, in relation to Noonla Indian Reserve #6 and Stellaquo Indian Reserve #1 the judge found:

- Both appellant First Nations have occupied the Nechako watershed since time immemorial and their status as Indigenous Peoples within the meaning of the United Nations Declaration on the Rights of Indigenous Peoples (“UNDRIP”) is unquestionable (RFJ at para. 280).
- It was a cultural pattern for the Dakelh to locate villages at or near the sites of fishing weirs/barricades (at para. 303).
- There was a fishing pier at Noonla, the fishery at Noonla would have been part of a keyoh, controlled by a köyohodachum and exclusively used and occupied by a sadeku in accordance with Dakelh legal traditions (at para. 303).
- For generations, a Saik’uz sadeku had occupied Noonla for regular fishing purposes (at para. 303).
- The Stellat’en and the Nadleh Whut’en historically comprised extended families (sadekus) who had exclusive use and occupation of, and controlled access to, tracts of land for hunting and fishing (keyohs) (at para. 315).

[74] RTA challenges the trial judge's finding that because Aboriginal rights are intimately connected to particular pieces of land, a claim in nuisance is sustainable whenever there is an unreasonable interference with that right. It argues that an "intimate connection" to land or site-specificity does not suffice to give rise to a claim in nuisance for interference with the fish.

[75] For their part, the appellants submit the judge was correct, and they point to other courts and tribunals that have provided remedies for site-specific fishing rights in other contexts, despite the lack of a proprietary interest in the fish themselves. In *Siska Indian Band v. Her Majesty the Queen in Right of Canada*, 2021 SCTC 2, the First Nation was awarded compensation by Canada for impacts on their fishing rights because of damages to traditional fishing sites (at para. 216). Furthermore, in *Ahousaht Indian Band and Nation v. Canada (Attorney General)*, 2021 BCCA 155 [Ahousaht], this Court expressly left open the possibility that compensation could be ordered for unjustified infringement of the Aboriginal fishing rights at issue in that case, with no proprietary interest in the fish themselves being seen to be a pre-requisite in either situation (at para. 299).

[76] We agree that it was not necessary for the trial judge to enter "the academic debate", but rather to focus on the fact that Sparrow and other authorities recognize that Aboriginal fishing rights are "not easily analogized to other rights" (RFJ at para. 375).

[77] We agree with the judge when he accepted the appellants' submission that the sui generis nature of Aboriginal rights, their importance to reconciliation and providing cultural security and continuity, and the fact that Aboriginal rights are intimately related to a particular piece of land were sufficient to sustain a claim in nuisance (RFJ at paras. 376–377).

[78] In particular, we consider that the parameters of the current framework of the law of nuisance as discussed in *Latham* at paras. 33–50, are sufficiently broad to encompass the Aboriginal fishing rights specifically advanced and found to exist in this case.

[79] That is because the appellants' constitutionally protected right to fish for food, social and ceremonial purposes in their respective areas of the Nechako watershed was

found to include the right to harvest resources that are associated with or adjacent to their reserve lands, to which they have exclusive occupation. In the circumstances of this case, it bears emphasizing that the right to fish is being exercised by members of Indigenous groups at a traditional fishing site adjacent to their reserves and involves:

- standing on the shore; and/or
- fixing nets in the water or to the river/lake bed; and/or
- erecting weirs/barricades in the river at locations adjacent to or in the vicinity of their reserve lands.

[80] Considered in this historical and cultural context and within the expanding recognition of the need for reconciliation, and cultural security and continuity for Indigenous peoples, we do not accept the distinctions that RTA raises to contest the appellants' standing.

[81] RTA also suggests that the trial decision expands the boundaries of the tort to the point where a "super tort" has been created where "large swathes of Canadian society [are made] potential trespassers and nuisance makers", resulting in a change which risks "upsetting complex, multi-faceted resource management decisions".

[82] RTA raised this same argument at trial, but the trial judge rejected the submission as "simply hyperbole". In rejecting this argument, he made two key points: (1) frivolous or unmeritorious claims would be deterred because causation of harm is difficult to prove, its litigation can be lengthy and expensive, and there are powerful defences available to respond; and (2) any incremental extension of the common law in those cases would only apply to Aboriginal claimants because it was only the unique, sui generis rights being recognized and protected (RFJ at paras. 378–380).

[83] We agree with this reasoning. Furthermore, what is at issue in this case is what the appellants allege to be an extreme and singular interference with their fishing rights that they had tried to have addressed for decades. The trial judge was correct to find that in the circumstances of this case, his findings of fact considered within the applicable legal framework led to the conclusion that the appellants had sufficient standing to advance a claim in private nuisance against RTA.

[84] We do wish to comment, however, on what the trial judge stated at para. 377:

... I have no hesitation in concluding that the plaintiffs' Aboriginal right to fish is a legally sufficient foundation for an action in private nuisance. This is so regardless of whether that right is exercised in the waters within or adjacent to the lands now comprising Noonla Indian Reserve #6 and Stellaquo Indian Reserve #1 and whether or not they hold title to those lands and waterbeds.

[Emphasis added.]

[85] In the circumstances of this case, the judge found there was a connection between the Aboriginal right to fish and the reserve lands and waterbeds in question. Given this finding, whether the judge correctly held that a s. 35 Aboriginal right can ground a claim in nuisance of and by itself, without any connection to land, even in the broadest sense, does not need to be decided. This is because any analysis would necessarily be contextual and grounded on the evidentiary record in a given case.

[86] With this caveat, given the trial judge's factual findings, even if his conclusions regarding standing were considered to be an extension of the common law, we nonetheless agree with him that it was appropriate because this "incremental extension": (a) will not result in indeterminate liability; (b) protects unique constitutional rights; and (c) is justified by the need to prevent "yet another ... challenge to Indigenous cultural security and continuity" (RFJ at paras. 378, 380–381).

[87] Accordingly, we would not interfere with the judge's conclusion that the appellants had standing to bring their nuisance claim.